

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3934

By: Smith

AS INTRODUCED

An Act relating to professions and occupations;
creating extended care licensed dental hygienists;
providing for qualifications; creating three levels
of licensure; limiting number of extended permits by
a supervising dentist; describing scope of practice;
requiring continuing education credits; allowing for
Medicaid coverage; providing for codification; and
providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 328.34a of Title 59, unless
there is created a duplication in numbering, reads as follows:

A. The practice of dental hygiene may be performed with consent
of the parent or legal guardian, on children participating in
residential and nonresidential centers for therapeutic services, on
all children in families which are receiving family preservation
services, on all children in the custody of the secretary of social
and rehabilitation services or the commissioner of juvenile justice
authority and in an out-of-home placement residing in foster care
homes, on children being served by runaway youth programs and

1 homeless shelters; and on children birth to five and children in
2 public and nonpublic schools kindergarten through grade twelve
3 regardless of the time of year and children participating in youth
4 organizations, so long as such children who are dentally underserved
5 are targeted; at any state correctional institution, local health
6 department or indigent health care clinic, and at any federally
7 qualified health center, federally qualified health center look-
8 alike or a community health center that receives funding from
9 Section 330 of the Health Center Consolidation Act, on a person,
10 inmate, client or patient thereof and on other persons as may be
11 defined by the Board of Dentistry; so long as:

12 1. The dental hygienist has received an "extended care permit
13 I" from the Oklahoma dental board specifying that the dental
14 hygienist has performed one thousand two hundred (1,200) hours of
15 dental hygiene care within the past three (3) years or has been an
16 instructor at an accredited dental hygiene program for two (2)
17 academic years within the past three (3) years;

18 2. The dental hygienist shows proof of professional liability
19 insurance;

20 3. The dental hygienist is sponsored by a dentist licensed in
21 the State of Oklahoma, including a signed agreement stating that the
22 dentist shall monitor the dental hygienist's activities, except such
23 dentist shall not monitor more than three (3) dental hygienists with
24 an extended care permit;

1 4. The tasks and procedures are limited to:

- 2 a. removal of extraneous deposits, stains and debris from
3 the teeth and the rendering of smooth surfaces of the
4 teeth to the depths of the gingival sulci,
5 b. the application of topical anesthetic if the dental
6 hygienist has completed the required course of
7 instruction approved by the dental board,
8 c. the application of fluoride,
9 d. dental hygiene instruction,
10 e. assessment of the patient's apparent need for further
11 evaluation by a dentist to diagnose the presence of
12 dental caries and other abnormalities, and
13 f. other duties as may be delegated verbally or in
14 writing by the sponsoring dentists consistent with
15 this act;

16 5. The dental hygienist advises the patient and legal guardian
17 that the services are preventive in nature and do not constitute a
18 comprehensive dental diagnosis and care;

19 6. The dental hygienist provides a copy of the findings and the
20 report of treatment to the sponsoring dentist and any other dental
21 or medical supervisor at a participating organization found in this
22 subsection; and
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1 7. Any payment to the dental hygienist for dental hygiene
2 services is received from the sponsoring dentist or the
3 participating organization found in this subsection.

4 B. The practice of dental hygiene may be performed on persons
5 with developmental disabilities and on persons who are 65 years and
6 older who live in a residential center, an adult care home,
7 subsidized housing, hospital long-term care unit, state institution
8 or are served in a community senior service center, elderly
9 nutrition program or at the home of a homebound person who qualifies
10 for the federal home and community based service (HCBS) waiver on a
11 resident of a facility, client or patient thereof so long as:

12 1. The dental hygienist has received an "extended care permit
13 II" from the Oklahoma dental board specifying that the dental
14 hygienist has:

- 15 a. performed one thousand six hundred (1,600) hours of
16 dental hygiene care or has been an instructor at an
17 accredited dental hygiene program for two (2) academic
18 years within the past three (3) years, and
19 b. completed six (6) hours of training on the care of
20 special needs patients or other training as may be
21 accepted by the board;

22 2. The dental hygienist shows proof of professional liability
23 insurance;

1 3. The dental hygienist is sponsored by a dentist licensed in
2 the state of Oklahoma, including a signed agreement stating that the
3 dentist shall monitor the dental hygienist's activities, except such
4 dentist shall not monitor more than three (3) dental hygienists with
5 an extended care permit II;

6 4. The tasks and procedures are limited to:

- 7 a. removal of extraneous deposits, stains and debris from
8 the teeth and the rendering of smooth surfaces of the
9 teeth to the depths of the gingival sulci,
- 10 b. the application of topical anesthetic if the dental
11 hygienist has completed the required course of
12 instruction approved by the dental board,
- 13 c. the application of fluoride,
- 14 d. dental hygiene instruction,
- 15 e. assessment of the patient's apparent need for further
16 evaluation by a dentist to diagnose the presence of
17 dental caries and other abnormalities, and
- 18 f. other duties as may be delegated verbally or in
19 writing by the sponsoring dentist consistent with this
20 act;

21 5. The dental hygienist advises the patient and legal guardian
22 that the services are preventive in nature and do not constitute
23 comprehensive dental diagnosis and care;

1 6. The dental hygienist provides a copy of the findings and the
2 report of treatment to the sponsoring dentist and any other dental
3 or medical supervisor at a participating organization found in this
4 subsection;

5 7. Any payment to the dental hygienist for dental hygiene
6 services is received from the sponsoring dentist or the
7 participating organization found in this subsection; and

8 8. The dental hygienist completes a minimum of three (3) hours
9 of education in the area of special needs care within the board's
10 continuing dental education requirements for relicensure.

11 C. The expanded practice of dental hygiene may be performed
12 with consent of the parent or legal guardian, on children
13 participating in residential and nonresidential centers for
14 therapeutic services, on all children in families which are
15 receiving family preservation services, on all children in the
16 custody of the secretary of social and rehabilitation services or
17 the commissioner of juvenile justice authority and in an out-of-home
18 placement residing in foster care homes, on children being served by
19 runaway youth programs and homeless shelters; and on children birth
20 to five and children in public and nonpublic schools kindergarten
21 through grade 12 regardless of the time of year and children
22 participating in youth organizations, so long as such children who
23 are dentally underserved are targeted; at any state correctional
24 institution, local health department or indigent health care clinic,

1 and at any federally qualified health center, federally qualified
2 health center look-alike or a community health center that receives
3 funding from Section 330 of the Health Center Consolidation Act, on
4 a person, inmate, client or patient; on persons with developmental
5 disabilities and on persons who are sixty-five (65) years and older
6 who live in a residential center, an adult care home, subsidized
7 housing, hospital long-term care unit, state institution or are
8 served in a community senior service center, elderly nutrition
9 program or at the home of a homebound person who qualifies for the
10 federal home and community based service (HCBS) waiver on a resident
11 of a facility, client or patient thereof so long as:

12 1. The dental hygienist has received an "extended care permit
13 III" from the Oklahoma Dental Board specifying that the dental
14 hygienist has:

- 15 a. performed two thousand (2,000) hours of dental hygiene
16 care or has been an instructor at an accredited dental
17 hygiene program for three (3) academic years within
18 the past four (4) years, and
19 b. completed a course of study of eighteen (18) seat
20 hours approved by the board which includes, but is not
21 limited to, emergency dental care techniques, the
22 preparation and placement of temporary restorations,
23 the adjustment of dental prostheses and appropriate
24 pharmacology;

1 2. The dental hygienist shows proof of professional liability
2 insurance;

3 3. The dental hygienist is sponsored by a dentist licensed in
4 the State of Oklahoma, including a signed agreement stating that the
5 dentist shall monitor the dental hygienist's activities, except such
6 dentist shall not monitor more than three (3) dental hygienists with
7 an extended care permit III;

8 4. The tasks and procedures are limited to:

- 9 a. removal of extraneous deposits, stains and debris from
10 the teeth and the rendering of smooth surfaces of the
11 teeth to the depths of the gingival sulci,
- 12 b. the application of topical anesthetic if the dental
13 hygienist has completed the required course of
14 instruction approved by the dental board,
- 15 c. the application of fluoride,
- 16 d. dental hygiene instruction,
- 17 e. assessment of the patient's apparent need for further
18 evaluation by a dentist to diagnose the presence of
19 dental caries and other abnormalities,
- 20 f. identification and removal of decay using hand
21 instrumentation and placing a temporary filling,
22 including glass ionomer and other palliative
23 materials,

- g. adjustment of dentures, placing soft relines in dentures, checking partial dentures for sore spots and placing permanent identification labeling in dentures,
- h. smoothing of a sharp tooth with a slow speed dental handpiece,
- i. use of local anesthetic, including topical, infiltration and block anesthesia, when appropriate to assist with procedures where medical services are available in a nursing home, health clinic or any other settings if the dental hygienist has completed a course on local anesthesia and nitrous oxide as required in this act,
- j. extraction of deciduous teeth that are partially exfoliated with class 4 mobility, and
- k. other duties as may be delegated verbally or in writing by the sponsoring dentist consistent with this act;

5. The dental hygienist advises the patient and legal guardian that the services are palliative or preventive in nature and do not constitute comprehensive dental diagnosis and care;

6. The dental hygienist provides a copy of the findings and the report of treatment to the sponsoring dentist and any other dental or medical supervisor at a participating organization found in this subsection;

1 7. The dental hygienist notifies the patient or the patient's
2 parent or legal guardian of such patient's need for treatment by a
3 dentist, when the dental hygienist finds an apparent need for
4 evaluation to diagnose the presence of dental caries and other
5 abnormalities;

6 8. Any payment to the dental hygienist for dental hygiene
7 services is received from the sponsoring dentist or the
8 participating organization found in this subsection; and

9 9. The dental hygienist completes a minimum of three (3) hours
10 of education related to the expanded scope of dental hygiene
11 practice within the board's continuing dental education requirements
12 for relicensure.

13 D. The Oklahoma Healthcare Authority shall allow for extended
14 dental hygienists under this section to accept Medicaid payments for
15 service.

16 SECTION 2. This act shall become effective November 1, 2026.

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